



CHAPTER cxlix.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Hereford Lancaster and Sudbury and the Birmingham Tame and Rea Main Sewerage and the Peterborough Joint Cemetery Districts. A.D. 1911.
[18th August 1911.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. From and after the thirty-first day of March one thousand nine hundred and twelve and as long as the provisions of Article IV. of the Order relating to Lancaster shall remain in operation sections 25 26 and 27 of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875 shall cease to apply to any accounts of the mayor aldermen and burgesses of the borough of Lancaster acting by the council (in this section referred to as "the Corporation") or of the treasurer of the said borough or of the officers of the Corporation: Certain provisions of Municipal Corporations Act 1882 and Public Health Act 1875 to cease to apply to accounts of borough of Lancaster.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

Provided that the accounts of the Corporation for the financial year ending the thirty-first day of March one thousand nine hundred and twelve shall be audited as if this Act had not passed.

Special provision relating to the Peterborough Order for protection of the Great Northern Railway Company.

3. Nothing contained in this Act or in the Peterborough Joint Cemetery Order 1911 thereby confirmed shall prejudice or affect the exercise of any statutory powers over or relating to the burial ground referred to in the said Order as "the old parish burial ground" which have been or may during the present session of Parliament be conferred on the Great Northern Railway Company.

Short title.

4. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1911.

SCHEDULE.

A.D. 1911.

CITY OF HEREFORD.

*Provisional Order for altering the Hereford Improvement
Act 1854 and the Hereford Improvement Act 1872.*

*Hereford
Order.*

To the Mayor Aldermen and Citizens of the City of Hereford;—

And to all others whom it may concern.

WHEREAS the City of Hereford (herein-after referred to as "the City") is an Urban District of which the Mayor Aldermen and Citizens acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the City the unrepealed provisions of the Hereford Improvement Act 1854 and the Hereford Improvement Act 1872 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and which Acts are herein-after together referred to as "the Local Acts");

17 Vict.
c. xxxi.
35 & 36 Vict.
c. cxix.

And whereas by Section 29 of the Act of 1854 the Corporation were empowered to provide market houses and market places for the sale of cattle provisions and other marketable commodities and to maintain and improve any market houses and market places belonging to them;

And whereas the Corporation were empowered by Section 24 of the Act of 1872 to extend alter and improve the existing market houses and market places and the approaches and conveniences connected therewith and by Section 25 of the Act of 1872 to purchase by agreement any lands which they might require for any of the purposes of that Act;

And whereas by the Local Acts the Corporation were empowered to borrow moneys for the purposes of those Acts;

And whereas in pursuance of their powers under the Local Acts the Corporation propose to acquire by agreement the land described in the schedule to this Order (herein-after referred to as the "scheduled land") for purposes of their market undertaking;

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Hereford
Order.*

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say:—

Additional
borrowing
powers for
market
undertaking.

Art. I. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their market undertaking and of the borough fund and borough rate of the City or upon either of those securities such further moneys not exceeding in the whole the sum of Two thousand pounds as may from time to time be required for the purposes of their market undertaking in addition to any moneys which they are authorised to borrow under the Local Acts for those purposes.

Power to
lease sche-
duled land.

Art. II. The Corporation may if and when they shall have acquired the scheduled land let the same or any part thereof to the Great Western Railway Company upon such terms and conditions and for such period as they think fit and for the purpose of the construction thereon of a railway siding to be used for the service of the market undertaking of the Corporation:

Provided that any such letting as aforesaid shall be subject to and shall contain a covenant for re-entry by the Corporation upon the land so let in the event of that land ceasing to be used for the purpose aforesaid.

Local Loans
Act and cer-
tain provi-
sions of Pub-
lic Health
Act made
applicable.

Art. III. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment
of borrowed
moneys.

Art. IV. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

Art. V.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

A.D. 1911.

Hereford
Order.

Mode of
 repayment.

(2) Subject to the provisions of Article VI. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911, sinking fund or the part of the sinking fund so applied if invested
Hereford at the rate per centum per annum on which the annual payments to
Order. the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase re-
 duction or
 discontinu-
 ance of pay-
 ments to
 sinking fund.

Art. VI.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct. A.D. 1911.
Hereford Order.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine. *Surplus of sinking fund.*

Art. VII.—(1) The Corporation shall have power—

Power to re-borrow.

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. VIII. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine. *Application of borrowed moneys.*

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

Hereford
Order.
Receiver.

Art. IX.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment of
debt.

Art. X.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1911.

—
Hereford
Order.

Art. XI. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation. Inquiries and expenses.

Art. XII. This Order may be cited as the Hereford Order 1911. Short title.

The SCHEDULE above referred to.

All that piece of land situate in the Parish of All Saints and containing by estimation three acres two roods and five poles or thereabouts which is bounded on the north by land belonging or reputed to belong to the Governors of the Victoria Eye and Ear Hospital and by land belonging or reputed to belong to Mr. E. H. Davies on the south by Canonmoor Street and by a passage leading from Edgar Street to Canonmoor Street on the east by Edgar Street and by the said land belonging or reputed to belong to Mr. E. H. Davies and on the west by land belonging or reputed to belong to the Great Western Railway Company.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

BOROUGH OF LANCASTER.

*Lancaster
Order.*

Provisional Order for partially repealing and altering the Local Act 5 George IV. Cap. LXVI. the Lancaster Water and Improvement Act 1876 the Lancaster Corporation Act 1880 the Lancaster Corporation Act 1888 and the Lancaster Corporation Act 1900.

To the Mayor Aldermen and Burgesses of the Borough of Lancaster;—

And to all others whom it may concern.

WHEREAS the Borough of Lancaster (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

5 Geo. IV.
c. lxvi.
39 & 40 Vict.
c. clxxxvi.
43 & 44 Vict.
c. lxxvii.
51 & 52 Vict.
c. clv.
63 & 64 Vict.
c. cccxxxvi.

And whereas there are in force in the Borough the unrepealed provisions of a Local Act passed in the fifth year of the reign of His late Majesty King George IV. and intituled "An Act for lighting " watching paving cleansing and improving the streets highways and " places within the Borough and Town of Lancaster in the County " Palatine of Lancaster" and of the Lancaster Water and Improve- ment Act 1876 the Lancaster Corporation Act 1880 the Lancaster Corporation Act 1888 and the Lancaster Corporation Act 1900 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and which Acts are herein-after together referred to as "the Local Acts") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

And whereas by virtue of Section 27 of the Act of 1824 the Corporation are empowered subject to the exceptions and exemptions provided for in that section and in Section 30 of that Act to make a rate (herein-after referred to as "the lighting and watching rate") for the purpose of defraying the charges and expenses of lighting and watching the markets streets squares ways lanes footways public passages and places in the Borough and of erecting a fire-engine house and providing fire engines and firemen and of carrying the Act of 1824 into execution in respect of the same and also to make a rate (herein-after referred to as "the paving rate") for the purpose of defraying the charges and expenses of paving widening amending repairing cleansing watering improving extending and regulating the said markets streets squares ways lanes footways public passages and places and otherwise carrying the Act of 1824 into execution in respect thereof;

And whereas by Section 29 of the Act of 1824 the lighting and watching rate is limited to the sum of sixpence in the pound and the paving rate is limited to the sum of ninepence in the pound in any one year;

A.D. 1911.

Lancaster
Order.

And whereas by Section 38 of the Act of 1876 it is enacted that it shall be lawful for the Corporation and any sanitary authority (with the consent as to such authority of the Local Government Board) to agree for and pay and also for the Corporation to agree with any railway or other company or corporation or person for the commutation of certain ancient tolls customs and duties either in perpetuity or otherwise and either by way of a gross sum or for an annual or other charge to be secured to the satisfaction of the Corporation;

And whereas by Section 58 of the Act of 1880 the Corporation are empowered in the manner and on the conditions mentioned in that section to sell and release without any sanction or authority other than the Act of 1880 all their estate right and interest in any lands vested in them which for not less than sixty years before the passing of that Act have been customarily let on leases for forty-one years on payment of a fine equal to twenty years reserved rent and it is by the last paragraph of that section provided that any moneys from time to time received by the Corporation under that section shall be carried to the borough fund and shall be applied in paying off any mortgages on the borough fund or otherwise for any purpose for which the capital of the borough fund is by law applicable for the time being and for no other purpose;

And whereas by Section 59 of the Act of 1880 the Corporation are empowered to levy a borough rate subject and according to the provisions of the Municipal Corporations Acts and to defray out of such rate any expenses under or for the purposes of the Public Health Acts or which by any Act are required or authorised to be defrayed out of a general district rate or any rate in the nature of a general district rate but it is provided that if any borough rate is made for any purposes the expense of which would but for the Act of 1880 be defrayed out of a general district rate or rate in the nature of a general district rate such rate shall as regards such purposes be made assessed and levied subject to the like exemptions and deductions to which assessments to a general district rate are subject under the provisions of the Public Health Acts;

And whereas by Section 109 of the Act of 1880 the Corporation are empowered from time to time to appoint and pay a competent person to act as auditor of the accounts of the Corporation in addition to and to act either along with or apart from the auditors elected or appointed under the Municipal Corporations Acts;

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Lancaster
Order.*

And whereas by subsection (2) of Section 108 of the Act of 1900 the Corporation were empowered to borrow on the security of the district fund and general district rate for the purchase of land for and the making of the street widenings and new street authorised by the Act of 1900 and also for the widening of New Street and the continuation of the widening of Chapel Street any sums not exceeding fifty-five thousand five hundred pounds and for the construction of the footbridge over the River Lune seven thousand pounds;

And whereas the Corporation have purchased the lands described in paragraphs 1 and 2 of the schedule to this Order (herein-after referred to as "the schedule") and doubts have arisen as to the sufficiency of the powers of the Corporation in the matter of the purchase of the said lands and it is expedient that their purchase should be confirmed;

And whereas the Corporation in the exercise of their powers under the Public Health Act 1875 have acquired the lands described in paragraph 3 of the schedule and do not propose to use those lands for the purposes for which they were acquired;

And whereas the Corporation have established a fund known as the Investment Fund which they had no authority in law to establish and have opened an account known as the Investment Fund Account of all moneys carried to the account of that fund and there is now standing to the credit of that account the sum of seven thousand seven hundred pounds fourteen shillings and tenpence;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Application
of borough
rate levied
under Act of
1880 to
certain ex-
penses under
Act of 1824.

Art. I.—(1) Sections 27 and 29 of the Act of 1824 shall be repealed.

(2) Section 59 of the Act of 1880 shall have effect as if the Corporation were thereby empowered to defray out of a borough rate levied under that section all the charges and expenses which they are now empowered by virtue of Section 27 of the Act of 1824 to defray by means of the lighting and watching rate and the paving rate:

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

Provided that any borough rate made under this Article for the purpose of defraying the said charges and expenses shall as regards that purpose be made assessed and levied on the persons on whom the lighting and watching rate and the paving rate would have been assessed and levied and be subject to the like exceptions and exemptions to which assessments to the lighting and watching rate and the paving rate would have been subject if this Order had not been made.

A.D. 1911.
 —
Lancaster
Order.

Art. II.—(1) Section 58 of the Act of 1880 shall be altered by the omission therefrom of the last paragraph commencing with the words "Any moneys from time to time received by the Corporation under this section."

Corporation
 may appropriate certain
 capital sums
 to purposes
 approved by
 Local
 Government
 Board.

(2) Section 38 of the Act of 1876 and Section 58 of the Act of 1880 shall have effect as if the Corporation were thereby empowered to appropriate to such purposes as may be approved by the Local Government Board any capital sums received by them in the exercise of their powers under those sections.

Art. III. From and after the commencement of this Order no further payments shall be made to the Investment Fund or to the Investment Fund Account and any moneys standing to the credit of the Investment Fund Account shall be dealt with in such manner as the Local Government Board direct.

Investment
 Fund
 Account.

Art. IV.—(1) From and after the Thirty-first day of March One thousand nine hundred and twelve Section 109 of the Act of 1880 shall be repealed.

Audit of
 Borough
 accounts.

All accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council or with a District Council or a Parish Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited.

Sections 247 and 250 of the Public Health Act 1875 and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Lancaster
Order.*

urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

Provided that the First Schedule to the District Auditors Act 1879 as applied by this Article shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) Nothing in subdivision (1) of this Article shall apply to the audit of the accounts of the Corporation for the financial year ending the Thirty-first day of March One thousand nine hundred and twelve.

(3) The Corporation may out of the borough fund—

(A) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(B) Pay the reasonable expenses of the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough;

(C) From time to time pay the reasonable expenses of a visit by members of the Corporation or of a committee of the Corporation to their waterworks;

(D) Pay reasonable subscriptions not exceeding in the whole one hundred pounds in any one year to the funds of institutions (other than hospitals) established and maintained in the Borough for the nursing of the poor for the care of the feeble-minded or for alleviating the condition of invalid children of the poorer classes;

(E) Pay reasonable subscriptions not exceeding in the whole twenty guineas in any one year in aid of local units of the territorial forces rifle clubs and other institutions established in or connected with the Borough for the purpose of rendering national or public services.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

(4) The Corporation may as part of the expenses of the execution of the Public Health Act 1875 pay or contribute towards the payment of a band or bands of music to perform in any place of public resort within the Borough. Provided that the amount of any such payment or contribution shall not in any one year exceed the sum of one hundred and fifty pounds.

A.D. 1911.

*Lancaster
Order.*

Art. V.—(1) Section 108 of the Act of 1900 shall in relation to any moneys to be hereafter borrowed have effect as if for the words “the district fund and general district rate” in subsection (2) of that section there were substituted the words “the borough fund and borough rate.”

Borough
fund and
borough rate
to be security
for moneys
borrowed
under Sec-
tion 108 (2)
of Act of
1900.

(2) The provisos to Section 97 of the Act of 1888 shall apply and have effect in relation to any moneys hereafter borrowed by the Corporation under the provisions of the said subsection as altered by subdivision (1) of this Article with the substitution in the said provisos so far as regards the said moneys for the references to the Act of 1888 of references to the Act of 1900 as altered by this Order.

Art. VI.—(1) The Corporation shall be deemed to have been empowered to purchase and shall be empowered to hold the lands described in paragraph 1 of the schedule for the purposes of the Public Health Act 1875 and the lands described in paragraph 2 of the schedule for the purposes of the Municipal Corporations Act 1882.

Confirmation
of purchase
of lands de-
scribed in
paragraphs 1
and 2 of
schedule.

(2) The Corporation shall be deemed always to have had and to have power to retain the lands described in paragraph 1 and paragraph 3 of the schedule and may appropriate the said lands to such purposes as the Local Government Board may approve.

Corporation
may retain
lands described
in paragraphs 1
and 3 of sche-
dule.

Art. VII. The Corporation may subject to the provisions of this Order borrow upon the security of the borough fund and borough rate of the Borough such moneys not exceeding in the whole the sum of One thousand and fifty pounds as may be required for defraying the cost of the purchase of the lands described in paragraph 1 of the schedule and such moneys not exceeding in the whole the sum of Six thousand eight hundred and sixty-five pounds as may be required for defraying the cost of the purchase of the lands described in paragraph 2 of the schedule.

Borrowing
powers for
defraying
cost of pur-
chase of lands
described in
paragraphs 1
and 2 of
schedule.

Art. VIII. The provisos to Section 97 of the Act of 1888 shall apply and have effect in relation to moneys borrowed under Article VII. of this Order for defraying the cost of the purchase of the lands described in paragraph 1 of the schedule with the substitution in those provisos so far as regards the said moneys for the references to the Act of 1888 of references to this Order and for the reference to street improvements of a reference to the purposes for which moneys may be borrowed under this Order.

Application
of provisos
to Section 97
of Act of 1888
to moneys
borrowed
under this
Order.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Lancaster
Order.*

Local Loans Act
and certain pro-
visions of Public
Health Act made
applicable.

Art. IX. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment
of borrowed
moneys.

Art. X. The moneys borrowed under Article VII. of this Order shall be repaid within the period of fifty years from the Thirty-first day of March One thousand nine hundred and eleven and that period is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. XI.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
maintenance
and applica-
tion of sink-
ing fund.

(2) Subject to the provisions of Article XII. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

and the Corporation shall be at liberty from time to time to vary and transpose the investments.

A.D. 1911.

*Lancaster
Order.*

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)---(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. XII.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.
Lancaster
Order.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. XIII.—(1) The Corporation shall have power—

- (A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

A.D. 1911.

*Lancaster
Order.*

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. XIV. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed.

Application
of borrowed
moneys.

Art. XV.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. XVI.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining

Return as to
provision for
repayment of
debt.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. invested at the end of the year and in the event of his failing to
Lancaster make the return the town clerk shall for each offence be liable to a
Order. penalty not exceeding twenty pounds to be recovered by action on
behalf of the Crown in the High Court and notwithstanding the
recovery of that penalty the making of the return shall be enforceable
by writ of mandamus to be obtained by the Board out of the High
Court.

(2) If it appears to the Local Government Board by that return
or otherwise that the Corporation have failed to pay any instalment
or annual payment required to be paid or to appropriate any sum
required to be appropriated or to set apart any sum required for any
sinking fund (whether the instalment or annual payment or sum is
required by this Order or by the Board in virtue thereof to be paid
appropriated or set apart) or have applied any portion of any sinking
fund to any purpose other than an authorised purpose the Board may
by order direct that the sum in their order mentioned not exceeding
double the amount in respect of which default has been made shall
be paid or applied as is mentioned in the said order and any such
order shall be enforceable by writ of mandamus to be obtained by the
Board out of the High Court.

Inquiries and
expenses.

Art. XVII. Where the Local Government Board cause any local
inquiry to be held with reference to any of the purposes of this
Order or of the Local Acts the costs incurred by the Board in relation
to that inquiry (including such reasonable sum not exceeding three
guineas a day as the Board may determine for the services of any
inspector or officer of the Board engaged in the inquiry) shall be
paid by the Corporation and the Board may certify the amount of
the costs so incurred and any sum so certified and directed by the
Board to be paid by the Corporation shall be a debt due to the Crown
from the Corporation.

Short title.

Art. XVIII. This Order may be cited as the Lancaster Order 1911.

The SCHEDULE above referred to.

1. All those lands hereditaments and premises situate in or near
Mason Street in the Borough of Lancaster which are more particularly
delineated and edged red upon two plans each of which is marked
Plan No. 1 and is sealed with the seal of office of the Local Govern-
ment Board.

2. All those pieces of land situate in or near Dalton Square in
the Borough of Lancaster which are more particularly delineated and

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

edged red and blue upon two plans each of which is marked Plan No. 2 and is sealed with the seal of office of the Local Government Board. A.D. 1911.
Lancaster
Order

3. All those pieces of land situate near the junction of Cable Street and Water Street in the Borough of Lancaster which are more particularly delineated and edged red on two plans each of which is marked Plan No. 3 and sealed with the seal of office of the Local Government Board.

One of each of the said plans is deposited in the office of the Local Government Board and the other shall within one month of the date of this Order be deposited by the town clerk at his office.

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF SUDBURY.

*Provisional Order for partially repealing and altering the
Local Act 6 George IV. Cap. LXX and the Local Act
5 & 6 Victoria Cap. LXXXVII.*

*Sudbury
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Sudbury; —

And to all others whom it may concern.

WHEREAS the Borough of Sudbury (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of a Local Act passed in the sixth year of the reign of His late Majesty King George IV. and intituled "An Act for paving
" lighting cleansing watching watering and improving the Town and
" Borough of Sudbury in the County of Suffolk" and of a Local Act passed in the sixth year of the reign of Her late Majesty Queen Victoria and intituled "An Act to amend alter and enlarge the Powers
" and Provisions of an Act for paving lighting cleansing watching
" watering and improving the Town and Borough of Sudbury in the
" County of Suffolk" (which Local Acts are herein-after respectively referred to as "the Act of 1825" and "the Act of 1842" and

6 Geo. IV.
c. lxx.

5 & 6 Vict.
c. lxxxvii.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. together referred to as "the Local Acts") as altered by a Provisional
Sudbury Order duly confirmed by Parliament which does not affect the subject-
Order. matter of this Order;

And whereas by Section 98 of the Act of 1825 and Section 86 of the Act of 1842 the predecessors of the Corporation were empowered to borrow moneys for the purposes of the Local Acts and by those sections and by Sections 99 100 and 101 of the Act of 1825 and Sections 87 88 89 90 and 91 of the Act of 1842 provision was made for the raising of the said moneys for re-borrowing for the transfer of securities and for other matters as therein set forth;

And whereas there is now outstanding the sum of Ten thousand three hundred pounds (herein-after referred to as "the existing debt") in respect of moneys borrowed by the Corporation or their predecessors under the powers and for the purposes aforesaid and it is expedient that provision should be made for the repayment of the existing debt;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Repeal of certain sections of Local Acts. Art. I. Sections 98 99 100 and 101 of the Act of 1825 and Sections 86 87 88 89 90 and 91 of the Act of 1842 shall be repealed:

Provided that this repeal shall not in relation to such mortgages under the Local Acts as are subsisting at the date of the Act of Parliament confirming this Order affect the operation of the provisions of the Local Acts with respect to mortgages and transfers.

Borrowing powers for repayment of existing debt. Art. II. Subject to the provisions of this Order the Corporation may borrow upon the security of the rate or rates authorised to be made and levied by virtue of the Local Acts such moneys as may from time to time be required for the purpose of the repayment of the existing debt or any part thereof.

Local Loans Act and certain provisions of Public Health Act made applicable. Art. III. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

A.D. 1911.

Art. IV. The existing debt and the moneys borrowed under Article II. of this Order shall be repaid within a period of forty years from the Thirty-first day of March One thousand nine hundred and twelve and that period is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

*Sudbury
Order.*

Period for
repayment
of existing
debt and
moneys bor-
rowed under
this Order.

Art. V.—(1) The Corporation shall repay the existing debt and the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
repayment.

(2) Subject to the provisions of Article VI. of this Order if the Corporation determine to repay by means of a sinking fund the existing debt or any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
maintenance
and applica-
tion of sink-
ing fund.

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Sudbury
Order.*

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. VI.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve. A.D. 1911.
Sudbury
Order.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine. Surplus of
sinking fund.

Art. VII.—(1) The Corporation shall have power—

- (A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
re-borrow.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Sudbury
Order.*

Application
of borrowed
moneys.

Receiver.

Art. VIII. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed.

Art. IX.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment of
debt.

Art. X.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1911.
Sudbury Order.

Art. XI. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Inquiries and expenses.

Art. XII. This Order may be cited as the Sudbury Order 1911.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

BIRMINGHAM TAME AND REA MAIN SEWERAGE
DISTRICT.

*Birmingham
Tame and
Rea Order.*

Provisional Order for altering certain Confirming Acts.

- To the Birmingham Tame and Rea District Drainage Board ;—
- To the Lord Mayor Aldermen and Citizens of the City of Birmingham ;—
- To the Mayor Aldermen and Burgesses of the Borough of Aston Manor ;—
- To the Mayor Aldermen and Burgesses of the Borough of Smethwick ;—
- To the Mayor Aldermen and Burgesses of the Borough of Sutton Coldfield ;—
- To the Urban District Council of Erdington ;—
- To the Urban District Council of Handsworth ;—
- To the Urban District Council of King's Norton and Northfield ;—
- To the Urban District Council of Perry Barr ;—
- To the Rural District Council of Castle Bromwich ;—
- To the Rural District Council of Meriden ;—
- And to all others whom it may concern.

WHEREAS by virtue of—

40 & 41 Vict.
c. ccxxix.

- (A) The Birmingham Tame and Rea Main Sewerage Order 1877 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Joint Boards) Act 1877 (which Order and Act are herein-after respectively referred to as "the Order of 1877" and "the Confirming Act of 1877") ;

44 & 45 Vict.
c. cii.

- (B) The Birmingham Tame and Rea Main Sewerage Order 1881 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Birmingham Tame and Rea &c.) Act 1881 (which Order and Act are herein-after respectively referred to as "the Order of 1881" and "the Confirming Act of 1881") ;

- (C) An Order of the Local Government Board dated the Nineteenth day of March One thousand eight hundred and eighty-six and made in pursuance of Article XVIII. of the Order of 1877 ;

54 & 55 Vict.
c. clxi.

- (D) The City of Birmingham Order 1891 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 13) Act 1891 ;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

- (E) The Warwick and Birmingham (Aston) Confirmation Order 1894; A.D. 1911.
- (F) The Stafford Worcester and West Bromwich (Oldbury and Perry Barr) Confirmation Order 1894; *Birmingham
Tame and
Rea Order.*
- (G) The Birmingham Tame and Rea Main Sewerage Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1896 (which Order and Act are herein-after respectively referred to as "the Order of 1896" and "the Confirming Act of 1896"); 59 & 60 Vict.
c. cvii.
- (H) The County of Worcester (King's Norton and Northfield Urban District) Confirmation Order 1898;
- (I) A Royal Charter of Incorporation by which the Urban District of Smethwick was created as from the Ninth day of November One thousand eight hundred and ninety-nine a municipal borough by the name of the Borough of Smethwick;
- (J) The Birmingham Tame and Rea Main Sewerage Order 1900 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1900 (which Order and Act are herein-after respectively referred to as "the Order of 1900" and "the Confirming Act of 1900"); 63 & 64 Vict.
c. cxvii.
- (K) The Birmingham Tame and Rea Main Sewerage Order 1902 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1902 (which Order and Act are herein-after respectively referred to as "the Order of 1902" and "the Confirming Act of 1902"); 2 Edw. 7.
c. lxxxii.
- (L) A Royal Charter of Incorporation by which the Urban District of Aston Manor was created as from the Ninth day of November One thousand nine hundred and three a municipal borough by the name of the Borough of Aston Manor;
- (M) The Birmingham Tame and Rea Main Sewerage Order 1908 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908 (which Order and Act are herein-after respectively referred to as "the Order of 1908" and "the Confirming Act of 1908"); 8 Edw. 7.
c. cxlvi.
- (N) The Birmingham (Extension) Order 1909 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1909 (which Order and Act are herein-after respectively referred to as "the Order of 1909" and "the Confirming Act of 1909"); 9 Edw. 7.
c. xxii.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. the City of Birmingham the Boroughs of Aston Manor Smethwick and
Birmingham Sutton Coldfield the Urban Districts of Erdington Handsworth and
Tame and Perry Barr the part of the Urban District of King's Norton and North-
Rea Order. field which comprises the area described in sub-division (2) of Article I.
of the Order of 1900 as the King's Norton and Northfield Special
Sewerage District and the part of the Rural District of Castle Brom-
wich which comprises the contributory places of Castle Bromwich and
Water Orton now constitute the United District called the Birmingham
Tame and Rea Main Sewerage District (herein-after referred to as "the
United District") of which the governing body is the Birmingham
Tame and Rea District Drainage Board (herein-after referred to as
"the Joint Board");

And whereas by the Birmingham (Extension) Order 1911 (herein-
after referred to as "the Order of 1911") which was confirmed by the
Local Government Board's Provisional Order Confirmation (No. 13)
Act 1911 (herein-after referred to as "the Confirming Act of 1911")
it is provided that on the Ninth day of November One thousand
nine hundred and eleven the boundary of the City of Birmingham
shall be altered so as to include in addition to the area of the
existing City of Birmingham the Borough of Aston Manor the Urban
Districts of Erdington and Handsworth a part of the Urban District
of King's Norton and Northfield (which part includes the King's
Norton and Northfield Special Drainage District) and the Rural District
of Yardley and that the United District shall be extended so as to
include the area of the said Rural District and so much of the said
part of the Urban District of King's Norton and Northfield as is not
already in the United District and it is by the Order of 1911 further
provided that from and after the Thirty-first day of March One thou-
sand nine hundred and twelve the Rural District Council of Castle
Bromwich shall be dissolved that the Parishes of Castle Bromwich
Curdworth and Water Orton and the Hamlet of Minworth shall be
included in and form part of the Rural District of Meriden that the
part of the Rural District of Meriden which will comprise the con-
tributory places of Castle Bromwich and Water Orton shall be a
Constituent District of the United District and that the Rural District
Council of Meriden should be a Constituent Authority of the Joint
Board;

And whereas it is expedient that the Parish of Curdworth and the
Hamlet of Minworth should be included in the United District:

Now therefore We the Local Government Board in pursuance of
38 & 39 Vict. the powers given to Us by Section 297 of the Public Health Act 1875
c. 55. and by any other Statutes in that behalf do hereby order that from
and after the Thirty-first day of March One thousand nine hundred
and twelve (herein-after referred to as "the commencement of this
Order") the Confirming Acts of 1877 1881 1896 1900 1902 and 1908

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

so far as they respectively relate to the Orders of 1877 1881 1896 1900 1902 and 1908 the Confirming Act of 1909 so far as it relates to the Order of 1909 and the Confirming Act of 1911 so far as it relates to the Order of 1911 (which Acts and Orders are herein-after together referred to as "the Confirming Acts" and "the Orders" respectively) shall be partially repealed and altered so that the following provisions shall have effect:—

A.D. 1911.
*Birmingham
Tame and
Rea Order.*

Art. I.—(1) The United District shall be extended so as to include the part of the Rural District of Meriden which comprises the Parish of Curdworth and the Hamlet of Minworth.

Extension
of United
District.

(2) The Parish of Curdworth and the Hamlet of Minworth shall be contributory places forming part of the Constituent District of the Rural District of Meriden.

(3) The expressions "Constituent District" or "Constituent Districts" where they occur in the Confirming Acts and the Orders shall be deemed to include the part of the Rural District of Meriden which comprises the contributory places of Castle Bromwich Curdworth Minworth and Water Orton.

(4) The elective member of the Joint Board representing the part of the Rural District of Castle Bromwich at present included in the United District who may be in office immediately before the commencement of this Order shall thereafter represent the part of the Rural District of Meriden referred to in subdivision (3) of this Article as if he had been elected by the Council of that District until the date upon which he would have retired if this Order had not been made.

(5) The particulars contained in Part I. and Part II. of the Schedule to this Order shall be substituted for the particulars contained in Schedule A. and Schedule B. to the Order of 1900 in lieu of the particulars contained in Part I. and Part II. of the Tenth Schedule to the Order of 1911.

Art. II.—(1) The Confirming Act of 1900 so far as it relates to Article III. of the Order of 1900 shall be repealed.

Sewage of
added parts
of United
District.

(2) The Rural District Council of Meriden shall use the best means for the time being practicable and available at reasonable cost to exclude the subsoil and infiltration water and the surface water from roads roofs and yards from the sewage of the contributory places of Curdworth and Minworth before the sewage passes into any sewer of the Joint Board or is delivered at any sewage disposal works of the Joint Board as the case may be.

Art. III. The contribution of the Rural District Council of Meriden in respect of the contributory place of Curdworth to the common fund out of which the expenses of the Joint Board are defrayed shall be calculated in proportion to the number of rated tenements in the part of such contributory place which is coloured brown on the map sealed

Contribu-
tions to com-
mon fund.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. with the official seal of the Local Government Board and deposited in their office copies whereof sealed in like manner shall be deposited in the office of the Clerk to the Joint Board and in the office of the Clerk to the said District Council and such contributions shall be made by the said District Council in respect of the said contributory place accordingly and not in proportion to the number of rated tenements in the whole of the said contributory place. Provided that nothing in this Article shall take away lessen or prejudicially affect the right of the said District Council to drain from time to time any other part or parts of the said contributory place to the outfall works of the Joint Board and when any such additional part or parts has or have been so drained by the District Council the contribution of the District Council in respect of the contributory place shall be calculated in proportion to the number of rated tenements in the part of the contributory place coloured brown on the map above referred to and also in the area or areas of the part or parts so drained in addition thereto as aforesaid and such contribution shall be made by the District Council in respect of the contributory place accordingly. The number of rated tenements shall be ascertained from the poor rate made last before the time of issuing the precepts for obtaining payment of the several contributions.

Saving as to certain agreements.

Art. IV. Except where otherwise expressly provided to the contrary nothing in this Order shall take away abridge or prejudicially affect any power or right vested in the Rural District Council of Meriden or in the Joint Board in relation to the contributory places of Curdworth or Minworth by virtue of the agreements between the Joint Board and the Rural District Council of Castle Bromwich dated the Thirty-first day of May One thousand eight hundred and ninety-seven and the Thirty-first day of December One thousand nine hundred and the deed of grant by the Joint Board to the last-mentioned District Council dated the Nineteenth day of April One thousand nine hundred and one.

Constitution of Special Drainage District.

Art. V. The Confirming Acts so far as they relate to the Orders shall be further altered and amended so as to provide that if at any time a special drainage district is constituted the area of which does not extend beyond the boundaries of the contributory places mentioned in Part II. of the Schedule to this Order then and in every such case that special drainage district shall continue to form part of the United District and the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of the Confirming Acts the Orders and this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

terms thereof were inserted in the Confirming Acts the Orders and this Order.

A.D. 1911.
 —
Birmingham
Tame and
Rea Order.
 Adjustment.

Art. VI. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the commencement of this Order or any expense liability or accounts arising out of incidental to or connected with or affected by the inclusion of the Parish of Curdworth and the Hamlet of Minworth in the area of the United District or any expense liability or accounts in respect of which doubt or difference may arise after the commencement of this Order.

Art. VII. This Order may be cited as the Birmingham Tame and Rea Main Sewerage Order 1911 and the Birmingham Tame and Rea Main Sewerage Orders 1877 to 1908 and this Order may be cited together as the Birmingham Tame and Rea Main Sewerage Orders 1877 to 1911.

Short titles.

The SCHEDULE above referred to.

PART I.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The City of Birmingham	The Lord Mayor Aldermen and Citizens of the City of Birmingham acting by the Council.	1	The Lord Mayor.	13
The Borough of Smethwick.	The Mayor Aldermen and Burgesses of the Borough of Smethwick acting by the Council.	—	- - -	2
The Borough of Sutton Coldfield.	The Mayor Aldermen and Burgesses of the Borough of Sutton Coldfield acting by the Council.	—	- - -	1
The Urban District of Perry Barr.	The Urban District Council of Perry Barr.	—	- . -	1

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

PART II.

*Birmingham
Tame and
Rea Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The part of the Rural District of Meriden which comprises the contributory places of Castle Bromwich Curdworth Minworth and Water Orton.	The Rural District Council of Meriden.	—	- . . -	1

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

PETERBOROUGH JOINT CEMETERY DISTRICT.

*Peterborough
Order.*

*Provisional Order for repealing the Peterborough
Improvement and Cemetery Act 1850 and for forming a United
District under Section 279 of the Public Health Act 1875.*

To the Mayor Aldermen and Citizens of the City of Peterborough ;—

To the Rural District Council of Peterborough ;—

To the Peterborough Cemetery Commissioners ;—

And to all others whom it may concern.

13 & 14 Vict. c. xciii. WHEREAS by the Peterborough Improvement and Cemetery Act 1850 provision was made amongst other things for the appointment of Commissioners under the name or style of the Peterborough Cemetery Commissioners for the purpose of making maintaining establishing and managing a cemetery for the area now comprised in the Parishes of Minster Close Precincts and Peterborough Within in the City of Peterborough and the Parishes of Peterborough Without and Longthorpe in the Rural District of Peterborough ;

And whereas the said Commissioners constructed a cemetery on land which they were authorised by the said Act to take and use for

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

that purpose and subsequently enlarged their cemetery by the acquisition and addition thereto of other lands ;

A.D. 1911,
*Peterborough
 Order.*

And whereas the said Commissioners in the exercise of their powers under the said Act have borrowed moneys and there was outstanding on the Thirty-first day of March One thousand nine hundred and eleven in respect of the said borrowed moneys the sum of One thousand six hundred pounds and a sinking fund has been established for the repayment of that sum ;

And whereas the district councils named in column 2 of the Schedule A. to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule ;

38 & 39 Vict.
 c. 55.

And whereas the said district councils have applied to the Local Government Board for the issue of a Provisional Order to repeal the Peterborough Improvement and Cemetery Act 1850 and to make such other provision as is herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 279 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order as follows viz. :—

Art. I. In this Order—

Definitions.

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order ;
- (2) The expression "the day of transfer" means the day of the first meeting of the Joint Board constituted by this Order ;
- (3) The expression "the Act" means the Public Health Act 1875 ;
- (4) The expression "the Local Act" means the Peterborough Improvement and Cemetery Act 1850 ;
- (5) The expression "Schedule A." means the Schedule A. to this Order ;
- (6) The expression "Constituent District" means as the circumstances require either so much of the City named in column 1 of Schedule A. as comprises the parishes also named in that column of the Schedule or so much of the Rural District named in the said column of the Schedule as comprises the contributory place also named in that column of the Schedule and the expression "Constituent Districts" means both the Constituent Districts ;

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Peterborough
Order.*

- (7) The expression "Constituent Authority" means a district council named in column 2 of Schedule A. and the expression "Constituent Authorities" means both the district councils so named;
- (8) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order;
- (9) The expression "the Commissioners" means the Peterborough Cemetery Commissioners appointed under the Local Act;
- (10) The expression "the existing cemetery district" means the district under the jurisdiction of the Commissioners;
- (11) The expression "the existing cemetery" means the cemetery provided by the Commissioners including the additions made thereto as aforesaid;
- (12) The expression "the old parish burial ground" means the burial ground for the former Parish of Peterborough which adjoins the street known as Cowgate in the City of Peterborough and is referred to in the Local Act as "the present burial ground" or "the present parochial burial ground";
- (13) The expression "the existing debt" means the sum of One thousand six hundred pounds which was outstanding on the Thirty-first day of March One thousand nine hundred and eleven in respect of moneys borrowed by the Commissioners under the Local Act or so much of that sum as is outstanding on the day of transfer.

Commence-
ment of
Order.

Art. II. This Order shall come into operation from and after the appointed day.

Formation of
district.

Art. III. The Constituent Districts shall be formed into a United District to be called the Peterborough Joint Cemetery District for the purposes---

- (1) of the management and control of the old parish burial ground;
- (2) of the maintenance management and control of the existing cemetery; and
- (3) of the acquisition construction and maintenance of an additional cemetery or additional cemeteries for the Constituent Districts.

Constitution
of governing
body.

Art. IV. The Joint Board shall consist of two ex-officio and seven elective members and shall be called the Peterborough Joint Cemetery Board.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

Art. V. The ex-officio members shall be the persons described in column 3 of Schedule A. and the elective members shall be elected by the Constituent Authorities.

Peterborough Order.

Ex-officio and elective members

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of Schedule A. and the said members shall be chosen by each Constituent Authority from among their own members.

Number and qualification of elective members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Disqualifications for members.
56 & 57 Vict.
c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Date of first election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Notification to Local Government Board of members first elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen:

Tenure of office of members.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the

Supply of vacancies.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. vacancy happens at a meeting to be held within six weeks of the
Peterborough occurrence of the vacancy or within such further period as the Local
Order. Government Board determine and seven days' previous notice in writing
of the said meeting shall be given or sent to each member of the
Constituent Authority by the clerk to that authority and the clerk shall
forthwith notify in writing to the clerk to the Joint Board the names
address and occupation of the person elected to fill the said vacancy.

Meetings. Art. XII.—(1) The time and place of holding the first meeting of
the Joint Board shall be fixed by the Local Government Board and
the subsequent ordinary meetings of the Joint Board shall be held at
such times and places as the Joint Board may appoint and at all
meetings of the Joint Board three members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to
the Joint Board when a requisition for that purpose is addressed to
him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than
that specified in the requisition shall be transacted at the extraordinary
meeting.

(4) Notices of all meetings of the Joint Board shall be delivered
or sent by post so as to reach the last known place of abode or
business in England of each member of the Joint Board three clear
days before the day of meeting or at such earlier time as the Joint
Board direct.

Committees. (5) The Joint Board may appoint committees consisting of members
of the Joint Board for the exercise of any powers which in the opinion
of the Joint Board can be properly exercised by committees but the
acts of every such committee shall unless otherwise directed by the
Joint Board be submitted to the Joint Board for approval Provided
that a committee so appointed shall in no case be authorised to borrow
money or to issue any precept for contributions or to enter into any
contract and any such committee shall be subject to the provisions of
Part IV. of the First Schedule to the Local Government Act 1894 so
far as they are applicable.

Art. XIII. From and after the day of transfer—

Repeal of Local
Act.

(1) The Local Act shall be repealed :

Commissioners
shall be
abolished.

(2) The Commissioners and the existing cemetery district shall
be abolished and shall cease to exist.

Appointment
and remun-
eration of
officers.

Art. XIV. The Joint Board shall at their first meeting or at an
adjournment thereof and thereafter as occasion requires appoint a
chairman (who shall subject to the provisions of Articles VII. and X.
of this Order continue chairman for such period not exceeding three

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint such other officers and servants as they think requisite The Joint Board may pay their treasurer clerk and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1911.
*Peterborough
Order.*

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Interments) Act 1879 the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz. :—

Powers rights
duties &c. of
Joint Board.

Of the Act :—

Section 141 in so far as by virtue of subsection (1) of Section 2 of the Public Health (Interments) Act 1879 it applies to cemeteries.

Sections 173 and 174 (except subsection 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 308 including miscellaneous provisions.

Of the Public Health (Interments) Act 1879 :—

42 & 43 Vict.
c. 31.

Sections 2 and 3 as amended by the Burial Act 1900 and the Burial Act 1906.

Of the Public Health (Officers) Act 1884 :—

47 & 48 Vict.
c. 74.

Section 2.

Of the Public Health (Members and Officers) Act 1885 :—

48 & 49 Vict.
c. 53.

Section 2.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

*Peterborough
Order.*

Transfer to Joint
Board of pro-
perty and liabi-
ties of Commis-
sioners.

Provisions
with respect
to existing
cemetery.

Art. XVI. On the day of transfer all property and liabilities which immediately before the day of transfer are vested in or attach to the Commissioners shall by virtue of this Order be transferred to and vest in and attach to the Joint Board.

Art. XVII.—(1) The whole of the lands comprising the existing cemetery shall be deemed to be lands acquired by and vested in the Commissioners under the provisions of the Local Act.

(2) From and after the day of transfer the existing cemetery shall be held maintained and managed by the Joint Board as if it were a cemetery acquired and constructed by the Joint Board for the Constituent Districts under the powers conferred upon the Joint Board by this Order.

(3) Until the Joint Board in the exercise of the powers conferred upon them by this Order make any byelaws regulations or table of fees or charges in relation to the existing cemetery all fees payments and sums receivable immediately before the day of transfer by the Commissioners shall be receivable by the Joint Board and all byelaws or regulations in force immediately before the day of transfer in relation to the existing cemetery shall until repealed or altered continue in force in like manner and with the like effect as if the byelaws or regulations had been made by the Joint Board.

(4) Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the day of transfer.

(5) Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the day of transfer will be exercisable by or attach to any incumbent or sexton under the Local Act or any Act incorporated therewith.

Provisions
with respect
to old parish
burial
ground.

Art. XVIII.—(1) From and after the day of transfer the management and control of the old parish burial ground shall be transferred to the Joint Board and the old parish burial ground and the walls and fences thereof shall be kept and maintained by the Joint Board in good repair and order.

(2) No interment shall take place in the old parish burial ground.

Expenses of
Joint Board.

Art. XIX.—(1) All expenses incurred by the Joint Board shall except so far as the expenses are defrayed in the manner herein-after mentioned be defrayed out of a common fund.

(2) To the common fund each Constituent Authority shall contribute in the proportion which the assessable value of the Constituent District bears to the total assessable value of the Constituent Districts.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

(3) Every contribution of the Council of the City of Peterborough as a Constituent Authority to the common fund shall be defrayed out of a rate to be assessed and levied only on that part of the City which comprises the parishes named in column 1 of Schedule A. and any such rate may be made as an addition to the general district rate of the City or as a separate rate in the nature of a general district rate : A.D. 1911.
Peterborough
Order.

Every contribution of the Rural District Council of Peterborough as a Constituent Authority to the common fund shall be defrayed as special expenses within the meaning of the Act and chargeable upon the contributory place named in column 1 of Schedule A.

(4) For the purposes of subdivision (2) of this Article the expression "assessable value" in relation to the Constituent District which is part of the City of Peterborough means the net annual value whereon the general district rate leviable for defraying any contribution required by a precept of the Joint Board is assessed and in relation to the other Constituent District means the assessable value as ascertained by a special assessment made in pursuance of Section 230 of the Act for the purpose of the separate rate leviable for defraying as special expenses any contribution so required from the Rural District Council of Peterborough.

Art. XX.—(1) All moneys received by the Joint Board in respect of grants of exclusive rights of burial under Section 40 of the Cemeteries Clauses Act 1847 in the existing cemetery or in any other cemetery provided by the Joint Board shall so long as any moneys forming part of the existing debt or any moneys borrowed or re-borrowed for the purposes of this Order are outstanding be applied towards the discharge of those moneys or towards the increase of any sinking fund set apart for the repayment of the said moneys and when the whole of the moneys so borrowed or re-borrowed have been paid off shall be applied in the same manner as the other moneys received by the Joint Board are required to be applied under subdivision (2) of this Article. Application
of moneys
received by
Joint Board.

(2) All other moneys received by the Joint Board shall be applied to the following purposes viz. :—

In payment of the establishment charges that is to say of the expenses properly chargeable to revenue of managing and maintaining the old parish burial ground the existing cemetery and any other cemetery or cemeteries provided by the Joint Board and works connected therewith :

In payment of interest on the existing debt and moneys borrowed or re-borrowed for the purposes of this Order :

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911.

Peterborough
Order.

In providing for the discharge of the existing debt and any moneys so borrowed or re-borrowed:

In payment if the Joint Board think fit of the expenses of executing any permanent works:

The residue (if any) shall be divided between the Constituent Authorities in the proportion which the assessable value of the Constituent District bears to the total assessable value of the Constituent Districts such assessable value to be ascertained in the manner indicated in subdivision (4) of Article XIX. of this Order.

Arrears of
rates.

Art. XXI. All arrears of rates made by the Commissioners which are due or owing on the day of transfer may be collected and recovered by the Joint Board as if the Joint Board were the Commissioners and as if this Order had not been made and when collected and recovered shall be applied by the Joint Board in the manner provided by subdivision (2) of Article XX. of this Order.

Liability for
existing debt.

Art. XXII.—(1) As from the day of transfer the liability attaching to the Commissioners for the repayment of the existing debt and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Joint Board and the existing debt shall by virtue of this Order be charged upon the common fund.

(2) The provisions contained in Schedule B. to this Order shall apply to the existing debt.

Saving for
existing
securities
and rights.

(3) Nothing in this Order shall prejudicially affect any mortgage or other security which has been given by the Commissioners in respect of the existing debt or the rights and powers of the persons entitled under any such mortgage or other security to enforce the same and when for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the rate leviable for the purpose of raising contributions to the common fund under this Order shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Inquiries and
expenses.

Art. XXIII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Local Government Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Local Government Board may determine for the services of any inspector or officer of the Local Government Board engaged in the inquiry) shall be paid by the Joint Board and the Local Government Board may certify the amount of the costs so incurred and any sum

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

so certified and directed by the Local Government Board to be paid by the Joint Board shall be a debt due to the Crown from the Joint Board. A.D. 1911.
Peterborough
Order.

Art. XXIV.—(1) Every officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Joint Board for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Local Government Act 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the common fund and the provisions of subsections (2) to (7) of the said Section 120 shall apply with the necessary modifications and with the substitution for the reference to the Treasury in subsections (4) and (6) of that section of a reference to the Local Government Board. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation. Compensa-
tion to officers
&c.

(2) For the purposes of subdivision (1) of this Article any officer or servant whose services are dispensed with or whose salary is reduced by the Joint Board within five years after the appointed day because his services are not required or his duties are diminished in consequence hereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XXV. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose. Inspection of
accounts.

Art. XXVI. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority. Auditor's
report and
abstract of
accounts.

Art. XXVII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or the number of Rural District Councillors for the contributory place named in Schedule A. is altered or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they direct Power of
Local Go-
vernment
Board to
adapt provi-
sions of
Order on
alteration of
Constituent
Districts.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. make such provision as to them seems fit for adapting the provisions
Peterborough of this Order to the alteration so made and to the incidents and
Order. consequences thereof and every such order shall have effect as if the
 terms thereof were inserted in this Order.

Settlement of Art. XXVIII. In case of difference respecting any matter arising
differences. out of the provisions of this Order the difference except in any case
 otherwise herein provided for shall be referred to and be settled by
 arbitration in the manner provided by the Act and the provisions of
 the Act shall with the necessary modifications apply as if the Joint
 Board or a Constituent Authority as the case may be were a party
 within the meaning of those provisions.

Short title. Art. XXIX. This Order may be cited as the Peterborough Joint
 Cemetery Order 1911.

The SCHEDULES above referred to.

SCHEDULE A.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The district comprising the Parishes of Minster Close Precincts and Peterborough Within in the City of Peterborough.	The Mayor Aldermen and Citizens of the City of Peterborough acting by the Council of the said City.	1	The Mayor or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Deputy Mayor.	6
The district comprising the contributory place of Peterborough Without in the Rural District of Peterborough.	The Rural District Council of Peterborough.	1	The member of the Rural District Council representing the contributory place named in Column 1.	1

SCHEDULE B.

A.D. 1911.

*Peterborough
Order.*

I. The existing debt shall be repaid within twenty years from the Thirty-first day of March One thousand nine hundred and eleven and that period is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Schedule and of the Local Loans Act 1875.

Period for
repayment
of existing
debt.

II.—(1) The Joint Board shall repay the existing debt by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
repayment
of existing
debt.

(2) Subject to the provisions of paragraph III. of this Schedule if the Joint Board determine to repay the existing debt by means of a sinking fund the sinking fund shall be formed and maintained either—

Formation
maintenance
and applica-
tion of sink-
ing fund.

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will with the sums carried to the sinking fund in pursuance of subdivision (7) of this paragraph together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as will with the sums carried to the sinking fund in pursuance of subdivision (7) of this paragraph and with accumulations at a rate not exceeding three pounds per centum per annum be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. of the Joint Board and the Joint Board shall be at liberty from time to time to vary and transpose the investments.
Peterborough Order.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Joint Board towards the equal annual payments to the fund.

(5) The Joint Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Joint Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Joint Board:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) The Joint Board shall as soon as practicable after the day of transfer apply any sum which may be standing to the credit of the sinking fund established for the repayment of the existing debt in payment of the existing debt or if a sinking fund has been established under the provisions of this Schedule for the repayment of the existing debt shall transfer or pay the sum to that sinking fund.

(8) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Schedule shall be paid by the Joint Board in addition to the payments provided for by this Schedule.

Increase reduction or discontinuance of payments to sinking fund. III.—(1) If it appears to the Joint Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Schedule together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Joint Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

Board that any such increase is necessary the Joint Board shall increase the payments to such extent as the Local Government Board may direct. A.D. 1911.
Peterborough Order.

(2) If the Joint Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Schedule together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Joint Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Joint Board may with the consent of the Local Government Board discontinue the equal annual payments to the sinking fund until the Local Government Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Joint Board with the consent of the Local Government Board may determine. Surplus of sinking fund.

IV.—(1) The Joint Board shall have power—

(A) to borrow for the purpose of paying off any part of the existing debt which is intended to be forthwith repaid ; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Joint Board in repaying any part of the existing debt and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to re-borrow.

(2) Any moneys borrowed under this paragraph shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this paragraph.

(3) The Joint Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

[Ch. cxlix.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 14) Act, 1911.

A.D. 1911. (4) The Joint Board shall not have power to borrow in order to
Peterborough replace any moneys previously borrowed which have been repaid—
Order.

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) For the purpose of raising money in the exercise of the powers of borrowing conferred by this paragraph the provisions of the Local Loans Act 1875 shall be available to the Joint Board and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this paragraph.

Application of borrowed moneys. V. All moneys from time to time borrowed under this Schedule shall be applied by the Joint Board only for the purposes for which the same are respectively authorised to be borrowed.

Receiver. VI.—(1) Subject to the provisions of this paragraph any mortgagee of the Joint Board in respect of a mortgage under this Schedule may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to provision for repayment of debt. VII.—(1) The clerk to the Joint Board shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Schedule or in respect of the existing debt and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may from time to time be prescribed by the Local Government Board and if required by the Local Government Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlix.]
Provisional Orders Confirmation (No. 14) Act, 1911.

or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1911.
—
Peterborough
Order.

(2) If it appears to the Local Government Board by that return or otherwise that the Joint Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Schedule or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Local Government Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY LTD., 116, GRAFTON STREET, DUBLIN.

